RESOLUTION 2000-72

A RESOLUTION FINDING COMPLIANCE (FIVE-YEAR INTERIM REVIEW) WITH BOULDER COUNTY LAND USE DOCKETS #SU-93-14 ("DOWE FLATS MINING & RECLAMATION PROJECT") AND #V-93-8 ("DOWE FLATS VACATION/RELOCATION OF COUNTY ROAD 47 AND VACATION OF A PORTION OF COUNTY ROAD 49"): A REQUEST FOR A SPECIAL USE PERMIT AND ASSOCIATED SITE SPECIFIC DEVELOPMENT PLAN FOR A LIMESTONE/SHALE OPEN MINING/QUARRYING OPERATION ON 312 ACRES WITHIN A 1911-ACRE PERMIT AREA, AND A REQUEST TO VACATE AND RELOCATE THE EXISTING ALIGNMENT OF COUNTY ROAD 47 AND TO VACATE PORTIONS OF COUNTY ROAD 49, ON PROPERTY LOCATED AT DOWE FLATS, EAST OF THE TOWN OF LYONS, NORTH OF U.S. HIGHWAY 66, WEST OF RABBIT MOUNTAIN, IN SECTIONS 9, 10, 15, 16, 21 & 22, T3N, R70W.

WHEREAS, by Resolution 94-81 of the Board of County Commissioners ("the Board") adopted June 28, 1994, Southdown, Inc., a Louisiana Corporation, through its agent John Lohr ("Applicant"), received approval for a special use permit, with associated site specific development plan (Dockets #SU-93-14/V-93-8 ("the Approval")), to mine limestone and shale on a 312-acre area within a 1911-acre permit area on the property which is generally known as "Dowe Flats" and which is located as described in the caption to this Resolution, above ("the Subject Property"), in the Agricultural Zoning District in unincorporated Boulder County; and

WHEREAS, the Approval required that interim reviews of the mining operation occur (as measured from the date of the Board's adoption of Resolution 94-81) at the end of years one, three, and five, and then occur every five years thereafter; and

WHEREAS, the purpose of the interim review is to review the monitoring/management plans and compliance with the terms, conditions, and commitments of record of the Approval; and

WHEREAS, the Board approved the first-year interim review by finding the Applicant in compliance with the Approval in the fall of 1995, through Resolution 95-239 adopted at that time; and

WHEREAS, the Board approved the third-year interim review by finding the Applicant in compliance with the Approval in the fall of 1997, through Resolution 97-192 adopted at that time (December, 1997); and

WHEREAS, on May 16, 2000, the Board held a duly noticed public hearing on the Applicant's five-year interim compliance review ("the Public Hearing"), following a March 15, 2000 public hearing before the County Planning Commission in which the Planning Commission recommended that the Applicant again be found in compliance; and

WHEREAS, at the Public Hearing the Board considered the recommendation of the County Land Use Department Planning Staff dated May 16, 2000, with its attachments; the recommendation of the Planning Commission; the testimony of the County Land Use Department Planning Staff; and the documents and testimony presented by the Applicant and its environmental consultant, and the Executive Director of St. Vrain Valley Community Watchdogs; and

WHEREAS, based on the Public Hearing, the Board finds that the Applicant continues to be in compliance with the terms, conditions, and commitments of record of the Approval.

NOW, THEREFORE, BE IT RESOLVED that the Applicant continues to be in compliance with the terms, conditions, and commitments of record of the Approval (Docket #SU-93-14, Resolution 94-81, and Resolution 95-239), based on this five-year interim review.

BE IT FURTHER RESOLVED that all of the terms, conditions, and commitments of record of the Approval (Docket #SU-93-14, Resolution 94-81, and Resolution 95-239) remain in full force and effect.

A motion to find the Applicant in compliance with the Approval, based upon the five-year interim review, was made by Commissioner Mendez, seconded by Commissioner Danish, and passed by a 3-0 vote of the Board.

ADOPTED this 20 day of June, 2000, nunc pro tunc the 16th day of May, 2000.

SEAL OF BOULDER COUNTY, COLORADO

BOARD OF COUNTY COMMISSIONERS OF BOULDER COUNTY:

Ronald K. Stewart

Ronald K. Stewart, Chair

(EXCUSED)

Jana L. Mendez, Vice Chair

Paul D. Danish

Paul D. Danish, Commissioner

ATTEST:

Susan M. Ashcraft

Clerk to the Board